

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Wednesday, July 08, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Wednesday, July 08, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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24CV-02512	Vincent Inaudi vs General Motors, LLC
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Motion for Summary Judgment

Defendant's motion for summary judgment is DENIED, as there is a triable issue of material fact.

Pursuant to Code of Civil Procedure section 437c, subdivision (q) the court will not rule on Plaintiff's objections as they were not relevant to the disposition of this motion.

To grant summary judgment, the court must determine from the evidence presented that "there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code of Civil Procedure section 437c subd. (c).)

"The court focuses on issue finding; it does not resolve issues of fact. The court seeks to find contradictions in the evidence, or inferences reasonably deducible from the evidence, which raise a triable issue of material fact." (*J.H. v. Los Angeles Unified School Dist.* (2010) 183 Cal.App.4th 123, 139.)

All doubts regarding the existence of material issues of fact are resolved in favor of the party opposing summary judgment. (*Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1556, *modified* (June 15, 1992).)

Here, there is a triable issue of material fact as to whether GM calculated its repurchase offer in accordance with Civil Code section 1793.2, subdivision (d)(2); see evidence cited in Plaintiff's response to Defendant's Separate Statement at UMF 4 and Plaintiff's AMF 5 regarding this fact.

As there is a dispute as to the calculation of the repurchase offer there is a triable issue of material fact. Accordingly, the motion for summary judgment must be denied.

24CV-03375 Melesio Ortega vs Anthony Diaz, et al.

Order to Show Cause Re: Dismissal

CONTINUED to September 9, 2026, at 8:15 a.m. for STATUS CONFERENCE. The Court notes that a declaration was filed at 9:38 p.m. on May 26, 2026, and due to such late filing was not available at the time of the status conference on May 27, 2026. Although no declaration has been filed in advance of this hearing, the Court continues the matter to afford counsel enough time to gather necessary declarations for the default. **ANY REQUEST FOR CONTINUANCE OF THE STATUS CONFERENCE MUST BE FILED NO LATER THAN 5 COURT DAYS PRIOR TO THE HEARING** in order to be considered. Failure to appear at the continued hearing date or to file a timely declaration will result in the setting of another OSC and the issuance of sanctions.

24CV-04537 Mandeep Dhillon vs General Motors LLC, et al.

Order to Show Cause Re: Dismissal - Notice of Settlement

CONTINUED to September 23, 2026, at 8:15 a.m. due to the pending motion to tax costs, set for hearing on August 18, 2026.

25CV-01207 Ana Hernandez Linares vs Triangle S Dairy, LLC

Order to Show Cause Re: Dismissal - Notice of Settlement

Appearance required. Appear to address the status of the conditional settlement for which notice was filed February 27, 2026, with an anticipated dismissal date of May 8, 2026, and show cause why the Court should not dismiss the matter, retaining jurisdiction for enforcement purposes pursuant to Code of Civil Procedure section 664.6. If there are no appearances, the matter may be dismissed by the Court pursuant to the settlement under California Rules of Court, rule 3.1385, as more than 45 days have passed since the date the settlement agreement conditions were to be completed.

25CV-04560

Valley Strong Credit Union vs Anthony Marquez

Order to Show Cause Re: Dismissal

VACATED. The Court finds GOOD CAUSE NOT TO DISMISS THIS CASE pursuant to the declaration of counsel filed June 25, 2026. A case management conference is set for March 29, 2027, at 10:00 a.m. in Courtroom 8. If default judgment has been entered prior to that date, the CMC will be vacated.

26CV-02445

PNC Bank vs Madriz & Sons Tree Services LLC, et al.

Hearing: Other Application for Writ of Possession Re: Maria Torres Macias

The unopposed application for writ of possession regarding defendant Maria Macias is GRANTED.

The Court finds Defendant has no interest in the property and Plaintiff's requirement of an undertaking is waived. Pursuant to Code of Civil Procedure section 515.010, subdivision (b), Defendant's undertaking for redelivery or to stay delivery is in the amount of \$60,000.

The Court will sign the order lodged on May 1, 2026, to be modified at 5c and 5d to reflect the amounts stated above.

Hearing: Other Application for Writ of Possession Re: Madriz & Sons Tree Services LLC

The unopposed application for writ of possession regarding defendant Madriz & Sons Tree Service LLC is GRANTED.

The Court finds Defendant has no interest in the property and Plaintiff's requirement of an undertaking is waived. Pursuant to Code of Civil Procedure section 515.010, subdivision (b), Defendant's undertaking for redelivery or to stay delivery is in the amount of \$60,000.

The Court notes that only one defendant, either Maria Macias or Madriz & Sons Tree Service LLC, must satisfy Defendant's undertaking.

The Court will sign the order lodged on May 1, 2026, to be modified at 5c and 5d to reflect the amounts stated above.

26CV-02858

Petition of: Naomi James

Order to Show Cause Re: Name Change

Appearance required. Proof of publication of the petition was filed July 2, 2026. No objections have been lodged with the court. Absent legal cause for denial, the petition for name change will be GRANTED.

26CV-03359

Angelique Soto vs Marisol Alcauter

Order to Show Cause Re: Restraining Order

Appearance required. No proof of service of the notice of hearing and temporary restraining orders on Respondent has been filed with the court.

26CV-03363

Esperanza Rios vs Rosa Moreno

Order to Show Cause Re: Restraining Order

Appearance required. No proof of service of the notice of hearing on Respondent has been filed with the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Wednesday, July 08, 2026
10:00 a.m.

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Case No.	Title / Description
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25CV-00835	State Farm Mut. Auto. Ins. Co. vs. Alfred Gomes, et al.
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Review Hearing - Status of Default

Hearing is vacated. The Court ordered entry of default judgment on July 7, 2026.

25CV-07183	Cavalry SPV I, LLC vs. Stacie Garza
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Order to Show Cause Why Sanctions Should Not Be Imposed on Plaintiff's Counsel for Failure to Appear at CMC and Failure to File CMC Statement

The Court has reviewed the declaration filed in opposition to the order to show cause why sanctions should not be imposed against Plaintiff's counsel for failure to appear at the case management conference on April 10, 2026, and for failure to file a CMC statement. The Court notes that Plaintiff's counsel has not provided an explanation for the failure to appear. The Court imposes monetary sanctions in the amount of \$100.00 with payment due twenty days from the date of notice.

Case Management Conference

Appearance required.

25CV-07188 Cavalry SPV I, LLC vs. Stacie Garza

Order to Show Cause Why Sanctions Should Not Be Imposed on Plaintiff's Counsel for Failure to Appear at CMC and Failure to File CMC Statement

The Court has reviewed the declaration filed in opposition to the order to show cause why sanctions should not be imposed against Plaintiff's counsel for failure to appear at the case management conference on April 10, 2026, and for failure to file a CMC statement. The Court notes that Plaintiff's counsel has not provided an explanation for the failure to appear. The Court imposes monetary sanctions in the amount of \$100.00 with payment due twenty days from the date of notice.

Case Management Conference

Appearance required.

26CV-02052 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-02213 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Status Review of Settlement

Appearance required.

26CV-02397 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-02503 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Motion to Set Aside Default and Vacate Default Judgment

Appearance required. Any opposition and any reply to the opposition may be made orally at the hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil Court Trials
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Wednesday, July 08, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Case No.	Title / Description
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24CV-01275	Discover Bank vs. Stephanie Salazar
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Court Trial

Appearance required.

24CV-05114	Midland Credit Management Inc. vs. Kleim Moua
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Court Trial

Appearance required.

25CV-02725	Midland Credit Management Inc. vs. Raul Gayton
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Court Trial

Appearance required.